

**SUPERIOR COURT OF CALIFORNIA  
COUNTY OF MARIN**

DATE: 08/28/26      TIME: 1:30 P.M.      DEPT: L      CASE NO: CV0002987

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF:    B.B.

vs.

DEFENDANT: COUNTY OF MARIN

NATURE OF PROCEEDINGS: MOTION – ATTORNEY’S FEES

**RULING**

Petitioner B.B. (“Petitioner”) seeks an award of attorney fees and costs following the overturning of an administrative decision by Respondent, County of Marin (“County”). On January 5, 2026, the court, Hon. Andrew Sweet presiding, ordered the County to 1) change the substantiated finding litigated in this matter to a finding of inconclusive, and 2) contact the California Department of Justice and have Petitioner’s name removed from the Child Abuse Central Index (“CACI”).

Petitioner disputed the listing of his name on the CACI via an administrative hearing. Petitioner appealed the administrative decision of the County of Marin (Respondent) via a Petition for Writ of Administrative Mandamus. After hearing on the matter, the court determined the Respondent (County) abused its discretion in this case. The court found that the weight of the evidence before the administrative agency did not support the administrative officer’s finding that it was “more likely than not that child abuse..., as defined in the Penal code Section 11165.6 occurred.” (Penal Code § 11164.12, subd. (b) [defining “substantiated”].)

**Attorneys’ Fees**

Fees are available to the Petitioner pursuant several statutes.

**Fee Standards**

Fees are available pursuant to Government Code § 800 for prevailing in an administrative action where there is a finding of arbitrary or capricious action or conduct of a public entity or its officers, and the complainant prevails in the action. “Arbitrary and capricious conduct includes conduct not supported by a fair or substantial reason, a stubborn insistence on following unauthorized conduct, or a bad faith legal dispute. Whether conduct was arbitrary and capricious is a question of fact within the sound discretion of the trial court.” (*Zuehlsdorf v. Simi Valley*

*Unified School District*, (2007) 148 Cal.4th 249.) Under the “arbitrary or capricious” standard, attorney fees may not be awarded simply because the administrative action was erroneous, even if the action was “clearly erroneous” or overturned on appeal. (*Stirling v. Agricultural Labor Relations Board* (1987) 189 Cal.App.3d 1305, 1312.) “The trial court’s ruling that certain findings and determinations were not supported by the record does not, in itself, constitute evidence of arbitrary and capricious conduct.” (*Byrnes v. Riles* (1984) 157 Cal.App.3d 1170, 1182.)

The order issued by Judge Sweet on December 23, 2025, goes into great detail to describe the court’s dissatisfaction with the investigation conducted by the County Dept. of Children and Family Services (“CFS”). Ms. Melanie Lopez worked as a social worker for the County. The judge concluded that the County did not have sufficient facts to support a finding that Mother of the Child at issue did not coach the daughter about the alleged abuse determined by the County to be true. The finding of the County against the Petitioner was arbitrary and capricious in that it was based on an incomplete investigation. Accordingly, an award of fees pursuant to Gov. Code §800 is granted.

Petitioner also seeks an award of fees pursuant to Code of Civil Procedure § 1021.5; California’s “Private Attorney General” statute. CCP §1021.5 requires the prevailing party to show that the action:

- (1) served to vindicate an important public right;
- (2) conferred a significant benefit on the general public or a large class of persons; and,
- (3) imposed a financial burden on plaintiffs which was out of proportion to their individual stake in the matter.

(*Baggett v. Gates*, (1982) 32 Cal.3d 128, 142; Code Civ. Proc., § 1021.5.)

Petitioner’s Writ has served to accomplish an important public right. It is crucial in child abuse investigation cases that possibly involve parental alienation and coaching of children be conducted as thoroughly as possible given the resources available to either law enforcement or CFS, while also providing a gentle hand with the child. “[T]he significant-benefit requirement calls for an examination whether the litigation has had a beneficial impact on the public as a whole”. *McCormick v. Public Employees’ Retirement System*, (2023) 90 Cal.App.5th 996, 1004 (citations and quotation marks omitted). “[H]ow many people will receive what kind of benefit, and how much, as a result of a given legal action is usually more of a value judgment than an issue of fact.” *Id.* at 1005. It is important that investigators are properly trained, and an award of reasonable attorneys’ for an investigation gone awry may motivate better training of social workers. The benefit of the County by providing adequate trainings that include parental alienation, for example, in investigations will serve the public better in the future.

As for the last prong, it is certainly true that a CACI listing could result in loss of employment, disqualification from professional licenses, and severe reputational injury. While these factors may impact the financial interest of the litigant, there can be no cost associated that this court can imagine more damming than law enforcement or the court’s interfering with a parent’s ability to see his child, by branding that parent unjustly as a sexual predator. This lawsuit vindicated his name and has put the County on notice that better training of their employees may be warranted.

## **Lodestar**

The court will scrutinize the reasonableness of the fee petition under the “lodestar” method by determining the lodestar, which consists of the number of hours reasonably spent by the reasonable hourly rates for that work on a non-contingency basis. The lodestar method requires the trial court to determine a lodestar figure based on careful examination of reasonable hourly compensation of each attorney and consideration of the time spent to perform each task. (*Vo v. Las Virgenes Water District*, (2000) 79 Cal.App.4th 440, 445-446.)

### **1. Reasonable Rate.**

Plaintiff’s counsel Tate Lounsbery, Esq. was licensed in 2005. He seeks compensable fees for himself as the founding partner of his law firm, which focuses on CACI grievance matters, family law, and criminal defense. He has litigated approximately 50 writ proceedings related to CACI hearings, in multiple California counties. He estimates that he has litigated more CACI-related writs on behalf of individuals than any other attorney in California. He also serves as a lobbyist on behalf of the American Civil Liberties Union on CACI matters.

He request a reasonable recoverable hourly rate of \$750.00 and \$200.00 per hour for paralegals Christine Vanyo and \$150.00 for Stephanie Mazariego.

The lodestar method requires the trial court to determine a lodestar figure based on careful examination of reasonable hourly compensation of each attorney and consideration of the time spent to perform each task. (*Vo*, 79 Cal.App.4th 445-446.). “The experienced trial judge is the best judge of the value of professional services rendered in his court.” (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095, citing *Serrano v. Priest (Serrano III)* (1977) 20. Cal.3d 25, 49.)

There is no objection to the specific hourly rate made by the County.

The court has reviewed the declaration submitted by counsel and finds the hourly rate requested of \$750.00 per hour to be eminently reasonable, and well in line with the reasonable compensable rates charged by Marin County attorneys with similar experience. The rates charged by his staff are also determined to be reasonable.

### **2. Hours Worked.**

A party who seeks attorney’s fees has the initial burden of “documenting the appropriate hours expended.” (*ComputerXpress Inc. v. Jackson*, (2001) Cal.App.4th 993, 1020.) Once a documented hour total has been submitted, the opposing party may make objections to the hours claimed. General objections that work is “excessive” or “unreasonable” are insufficient. The objections should be specific. (*Premier Med. Mgmt. v California Ins. Guarantee Ass’n*, (2008) 163 Cal.App. 4th 550, 563.)

The basis for calculating the lodestar “must be the actual hours counsel devoted to the case, less those resulting from ineffective or duplicative use of time.” (*Horsford v. Board of Trustees of Cal. State*, (2005) 132 Cal.App. 4th 359, 395.) The court also recognizes these billing records of

counsel constitute “verified time statements of the attorneys, as officers of the court, and are entitled to credence in the absence of a clear indication that the records are erroneous.” *Id.* at 394.

Unfortunately, Petitioner does not specifically itemize the total hours committed to this case by attorney time and paralegal time. The court has reviewed the “detailed report” submitted by the Petitioner and attached to the attorney declaration. The report was generated by “Clockify” and appears to be contemporaneously created.

Here too, the County does not specifically object to the hours worked by Petitioner’s counsel.

California courts have consistently held that verified time statements from attorneys carry a presumption of accuracy when submitted in support of fee requests. In *Horsford*, the court articulated the standard that attorney billing records are presumed credible unless there is "a clear indication the records are erroneous." This principle has been repeatedly affirmed. In the *City of Colton v. Singletary*, the court applied this exact standard, holding that "the verified time statements of (an) attorney ( ), as (an) officer( ) of the court, are entitled to credence in the absence of a clear indication the records are erroneous". ([\*City of Colton v. Singletary\*, \(2012\) 206 Cal.App.4th 751.](#))

Mr. Lounsbery submitted detailed contemporaneously created billing statements that were attached to his declaration filed on April 14, 2026, as Exhibit 1, requesting compensable time.

Petitioner’s request for recovery of reasonable attorney’s fees pursuant to Gov’t Code §800 in the amount of \$7,500 is GRANTED.

Petitioner’s request for recovery of reasonable attorney’s fees pursuant to CCP §1021.5 in the amount of \$18,008 (\$7,500 - \$25,508) is also GRANTED.

Mr. Lounsbery states in his moving papers that he has committed “approximately” 32 hours to this case. The total hours, however, are not discussed in his declaration, which was signed under penalty of perjury. Despite this omission, the court has no basis to believe that the hours stated in the moving papers are inaccurate. Counsel should be prepared to provide the court with an itemized breakdown of the hours worked so the court will have the information to complete the lodestar formula of => exact hours worked x \$750 reasonable rate = \$25,508.13 as requested reasonable fee.

### **Costs**

Petitioner’s request for a cost award pursuant to Gov’t Code §800 for filings and litigation costs associated writ proceeding is \$1,655.92. The request includes court filing fees and efileing service charges from the provider One Legal (\$871.49), postage fees (\$21.43) and the cost of the preparing the transcript of the administrative hearing (\$763). The request is GRANTED.

*Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.*

*IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.*

*FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing while using the virtual remote courtroom. If the connection is inadequate, the Court may proceed with the hearing in the party's absence. If it is determined that you are diving your car during the hearing, you will be removed from the virtual courtroom. (Yes, this happens).*

**SUPERIOR COURT OF CALIFORNIA  
COUNTY OF MARIN**

DATE: 08/28/26      TIME: 1:30 P.M.      DEPT: L      CASE NO: CV0004916

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

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PLAINTIFF:      ALISSA MADDEN

vs.

DEFENDANT: DARREN LITTLE, ET AL

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NATURE OF PROCEEDINGS: 1) DEMURRER  
2) MOTION - STRIKE

**RULING**

The demurrer of defendants Darren Little (“Little”) and Booth & Little (“B&L”) is sustained with leave to amend as to the fourth cause of action only. The demurrer is overruled as to the remaining counts. The motion to strike is moot.

**Background**

Plaintiffs Alissa Madden (“Madden”) and Alissa Madden, Inc. (“Madden, Inc.”) claim injuries and damages resulting from improper roofing installation by Little and B&L and improper mold remediation by defendant West Coast Water & Fire Restoration, Inc. (“West Coast”).

Plaintiffs commenced this action on December 27, 2024. The complaint includes the following causes of action: (1) negligence (Little and B&L); (2) negligence (West Coast); (3) negligent infliction of emotional distress (all defendants); and (4) fraudulent misrepresentation (all defendants).

At present, Little and B&L (collectively “Defendants”) demur to the causes of action directed against them and move to strike Plaintiffs’ claim for punitive damages.

According to the complaint, Madden leased a home in Kentfield from Stacy Stevenson beginning on September 15, 2020, and ending on July 20, 2023. Madden operated her interior design business Madden, Inc. within the premises. (¶1.) Prior to Madden leasing the premises, Stevenson hired Little and B&L to install a new roof on the home. The work was performed in April of 2019. (¶2.) Little and B&L purchased and installed the wrong type and/or wrong size of shingles for the pitch of the roof, which created a condition in which the roof was unable to properly repel water during rain events. (¶8.) When the rainy season began, substantial amounts of water entered the home, damaging Madden’s personal possessions and exposing her to